

Bipinchandra Parmar vs Space Applications Centre,Isro on 17 December, 2025

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O.A.No.411/2017

CENTRAL ADMINISTRATIVE TRIBUNAL
AHMEDABAD BENCH

O.A. No.411/2017

Dated this the 17th Day of December, 2025

Reserved On: 08.09.2025
Pronounced On: 17.12.2025

CORAM:

Hon'ble Shri Jayesh V Bhairavia, Member (J)
Hon'ble Dr. Hukum Singh Meena, Member (A)

1. BIPINCHANDRA PARMAR.
S/o Shri Bhikhabhai S Parmar
Age-48, Senior Project Assistant, SAC Residing at Room
No.4008, Block No.624, New Bapunagar, Ahmedabad-38002.
2. NATVAR SALUBHAI VARDARIA,
S/o Shri Salubhai K. Vardaria
Age-62 years, Senior Project Assistant, (Retired),
SAC Residing at No.46, Anand Bhuvan Soc.,
Abadnagar, Bopal, Ahmedabad-380058
3. MANHARBHAI GANPATBHAI PARMAR,
Son of Shri Ganpatbhai Parmar
Age-62 years, Senior Project Assistant,
(Retired) SAC Residing at No.69,
Aashapurinagar, Nr. Bhilvada,
Vastral Road, Amararaiwadi, Ahmedabad-380026
4. HITESH MURLIDHAR SHARMA,
S/o Shri Murlidhar Sharma
Age-53 years, Senior Proejct Assistant,
SAC Residing at No.C-02/05, Dos Housing Colony,
Vastrapur, Ahmedabad:380 015
5. JAVSINGH NARANBHAI MAHIDA,
S/o Shri Naranbhai Mahida
Age-59 years, Senior Project Assistant,
SAC, residing at No. 35,

Anandbhuvan Soc. Abadnagar,
Bopal Road, Ahmedabad-58

6. DHIRAJ SAVAJIBHAI PARMAR,
S/o Shri Savajibhai B Parmar
Age-52 years, Senior Project Assistant,

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SAC, Residing at No.39/465,
Abhinav Apartment,
Saijpur Bogha, Ahmedabad-382345.

7. PANKAJKUMAR SOMABHAI PARMAR.
Son of Shri Somabhai Maganbhai Parmar
Age-44 years, Project Personal Secretary,
SAC Residing at no.25, Jagjivanram Soc. Saraspur,
Ahmedabad-380058
8. PARESH LAXMANBHAI PRAJAPATI
Son of Shri Laxmanbhai Prajapati
Age-51 years, Project Personal Secretary,
SAC Residing at No.253,
Haripura, Asarva, Ahmedabad-380016
9. BALDEV JIVANLAL PARMAR,
Son of Shri Jivanlal M Parmar
Age-54 years, Project Personal Secretary,
SAC Residing at No.C/10/3, Vikramanagar,
Ambali-Bopal Road, Ahmedabad-380058
10. Mrs. MRIDULA MALHOTRA
W/o Shri Roopal Malhotra Age-50,
Project Personal Secretary-SAC
Residing at No.18, Aarohi Residency South Bhopal,
Ahmedabad-380058.
11. SHERIN BHARGAVAN,
Son of Shri Bhargavan G.C
Age-44 years, Project Personal Secretary, SAC,
residing at No. C/3/16, Vikramnagar,
Ambli-BopalRoad, Ahmedabad - 380 058.
12. MANUBHAI GANPATBHAI PARMAR,
S/o Shri Ganpatbhai Parmar

Age-59 years, Senior Project Assistant, SAC
Residing at No.28/216, Kalapinagar,
Asarva, Ahmedabad-380 016

13. P. VENKAT RAMANA,
Son of Shri P Veerraju
Age-52 years, Project Personal Secretary, SAC
Residing at No.B/34- Vaibhav Flat,
Bhavya Park, Bopal, Ahmedabad-380058
14. SHAILESHKUMAR MANILAL PARMAR,
Son of Shri Manilal J. Parmar
Age-50 years, Project Personal Secretary, SAC
Residing at No.A/33, Jalkamal Park,

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Saijpur Bhogha, Ahmedabad-382345

15. ASHOK ISHWARLAL CHANDANI,
Son of Shri Ishwarlal C. Chandnani
Age-60 years, Senior Project Assistant, SAC(Retired),
Bulgow No.30, Ishwar Bhavan,
Parshottamnagar, Nava Wadaj,
Ahmedabad-380013
16. SMT. MAYA K. THADANI,
W/o Shri Kishor Thadani- Husand
Age-59 years, Senior Project Assistant, SAC,
Residing at no.C/306, Panchdhara Plaza Nehrunagar,
Ahmedabad-380 015
17. BHAGWANDAS HAKUMATRAI MANGLANI,
S/o Shri Hakumatrai Narumal
Age-58 years, Senior Project Assistant, SAC
Bungalow No. 4, Sudarshan Bungalows B/H:Sukhramdas
Bungalows Area,
Kubernagar, Ahmedabad-382340
18. AKBARBHAI USMANBHAI MANSURI,
Son of Shri Ushmanbhai Mansuri
Age-52 years, Senior Project Assistant, SAC,
Residing at No.B/70, Ajit Residency,
Ajit Mills Compound, Ahmedabad-380023

19. SMT.HITA ASHVIN JANI,
W/o Shri Ashvin D. Jani
Age-53 years, Senior Project Assistant, SAC
Residing at No.B-17, Sanchay So.,
Ambli-Bopal Road,
Bopal, Ahmedabad 380058
20. BHOJRAJ KHUBCHAND SUKHWANI,
Son of Shri Sukhwani Khubchand G
Age-54 years, Senior Proejct Assistant, SAC,
Residing at No. 82/ Maulik Tenament, Nr. P&T Colony,
Satellite Raod, Jodhpur, Ahmedabd: 380015
21. RAJU ISHWERLAL AMIN,
Son of Shri Ishwarlal K Vaghela
Age-51 years, Senior Proejct Assistant, SAC,
Residing at No.B/504, Srikrishna Tower,
Krishnagar, Ahmedabad-382345
22. SMT. PRITI SATISHKUMAR SOLANKI
W/o Shri Satishkumar H. Solanki,

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Age-50 years, Senior Proejct Assistant,
SAC Residing at No.7, Devalayam Bunglow,
Ambali Road, Ahmedabad-380058

23. SMT. URVASHI JAYENDRA MODI,
W/o Shri Jayendra H. Modi
Age-51 years, Senior Proejct Assistant, SAC
Residing at No.A/5, Parijat Row House,
Vejalpur, Ahmedabad-30051
24. RAKESH NATWARLAL BHAVSAR,
S/o Shri Natwarlal Bhavsar
Age-50 years, Senior Proejct Assistant,
SAC Residing at No.7, Chimanlal Park,
Nr. Cadila Bridge, Ahmedabad-380050
25. SMT. ALPA ASHOKKUMAR PATEL,
W/o Shri Ashokkumar Chandulal Patel
Age-50 years, Senior Proejct Assistant, SAC
Residing at No.B-2, Mayur Pankh Society,

Nr. Umiya Vijay Bus-Stop Satellite Road,
Ahmedabad-380 015

26. SOLOMON S. JOHN,
S/o Shri John Solomon Age-54 years,
Senior Proejct Assistant, SAC,
Residing at No. 15 - Elim Park,
Nr. P.N. Bank Maninagar, Ahmedabad - 380008
27. GAUTAM LAXMINARAYAN TRIVEDI,
S/o Shri Laxminarayan Trivedi
Age-51 years, Senior Project Assistant, SAC,
Residing at No.C9/01, Vikramnagar Colony,
Nr. Iscon Temple, Ahmedabad - 380058
28. SMT. REKHA KAMALAKAR PATIL,
W/o Shri Kamalakar M Patil,
Age-53 years, Senior Project Assistant, SAC
Residing at No.B/13, Bhumideep Park,
Maninagar, Ahmedabad-380008
29. RAMESH SOHANDA,
S/o Shri Manohar Sohanda
Age-46 years, Project Personal Secretary, SAC
Residing at B-210, Nandan Apartment,
Ramdevnagar, Satellite,
Ahmedabad - 380015.
30. DALPATSINH RATHOD

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S/o Shri Ditabhai Rathod,
57-years, Senior Project Assistant, SAC
Residing at B-501, Sayona Tilak-2,
Gota, Ahmedabad-380057

31. SUNIL M□□□□,
S/o Shri Lachhmandas Matai
Age-43 years, Senior Personal Secretary, SAC
Residing at No.9-A, Karnavati Bunglow,
Near, Avas Park, Opp. Kotarpur Water Works
Noble Nagar, Ahmedabad-382340

32. SMT. PARUL BHAVSAR,
W/o Shri Pareshkumar Bhavsar,
Age-50 years, Senior Project Assistant, SAC
Residing at No.203,
Pranjal Apartment Subhash Chowk,
Memnagar, Ahmedabad-380052
33. GULSHAN BARAPATRE,
S/o Shri Jagannath Barapatre,
Age-40, Project Personal Secretary, SAC
Residing at No.C/16/7, Vikramnagar colony
Ambali-Bopal Road, Ahmedabad-380058
34. KAMLESH PANDYA,
S/o Shri Kantilal Pandya
Aged-59, Senior Project Assistant, SAC
B/91, Saujanya Society, B/h Namrata & Prerna Soc.
Ishanpur-Vatva Road,
Ishanpur, Ahmedabad-382443
35. MAHESH KHATRI,
S/o Shri Natvarlal Khatri
Age-59, Senior Project Assistant - SAC Residing at No.E-204,
Shyam Apartment Nehru Park, Vastrapur, Ahmedabad-380015
36. NIZAMALI SAIYED,
S/o shri Nazirhusein Saiyed
Age-60- Senior Project Assistant(Retired)-SAC
Residing at No.18 Mustaq Soc Nr. Golden Cinema,
Vatva Road, Vatva, Ahmedabad-382440.
37. MUKESH BHAVSAR,
S/o Shri Arvindbhai S Bhavsar
Age-48, Senior Project Assistant, SAC
Residing at No.A-S/4, Rajavi Complex,
Near Sonal Char Rasta, Gurukul Road,
Memnagar, Ahmedabad-380052

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38. SMT. PAYAL GOHIL,
W/of Shri Umesh Gohil
Age-, Project Personal Secretary, SAC
Residing at No.F-203, Surel Apartment,
Opp. Satyagrah Chhavani, Satellite.

Ahmedabad-380015

39. BABULAL SHELADIYA,
S/o Shri Valjibhai Sheladiya
Age-54, Senior Project Assistant, SAC
Residing at No.A/29, Shakutal Bunglow
Nikol-Naroda Road, Nava Nikol
Ahmedabad-382350
40. SMT. NITA CHRISTACHARI,
W/of Shri Paresh Christachari
Aged-50, Project Personal Secretary
Residing at No.201, Shelter Apartment
Behrampura, Ahemdabad-380022
41. ASHOK PASI,
S/o Shri Rajaram Pasi,
Age-49, Senior Project Assistant
Residing at No.47, Anandbhuvan Soc.
Abadnagar, Bopal, Ahmedabad-380058
42. SMT. ANJELA NAG,
W/o Shri C B Nag
Age-45, Proejct Personal Secretary-SAC
Residing at NO.E-201, Sanatan Residency,
Bakeri City, Vejalpur, Ahmedabad-380051
43. GHORDHANBHAI GURJAR,
S/o Shri Bababhai Gurjar
Age-53, Senior Proejct Assistant
Residing at No.20/B, Geetabaug Tenament
Opp. Kanak Dham Row House, Vejalpur,
Ahmedabad-380051
44. RAHUL TIRPUDE,
S/o Shri Amarrao Tirpude,
Age-54, Project Personal Secretary
Residing at No.635/4096, Guj Hsg. Board 137,
Last Bust Stop, Bapunagar,
Ahmedabad-380024.
45. SMT. MANDKINI BHARUCHA,
W/o Cecil Bharucha
Age-52, Senior Project Assistant

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Residing at No.B/4/201, Spring Park,
Satellite, Ahmedabad-380015

46. SATISH IYER,
S/o Shri Shankar Iyer
Age-50, Senior Project Assistant, SAC
Residing at No.B/5, Shivanand Apartment,
Ramdevnagar, Ahmedabad-380015.
47. LOMESH NINAVE,
S/o Shri Januba Ninave
Age 50, Senior Project Assistant, SAC
Residing at No.1/5, Madhav Park,
Vastral, Ahmedabad-382418
48. DHARMENDRA KANTILAL DESAI,
S/o Shri Kantilal Desai
Age-51 years, Senior Assistant, SAC,
Residing at No.C/8, Keshav Apartment,
Memnagar, Ahmedabad-380052
49. MUKESH BHARATBHAI SHAH,
S/o Shri Bharatbhai N. Shah
Age-63 years, Senior Assistant, (Retired)
Residing at No.758/1, Limbda Pole, Saraspur,
Ahmedabad 380 018
50. DALU SUKHABHAI BHARWAD,
S/o Shri Sukhabhai A. Bharwad
Age-64 years, Senior Assistant(Rtd), SAC
Residing at Bharwad Vas,
Vastrapur, Ahmedabad-380015
51. SMT. SANGEETA ANILKUMAR JOSHI,
W/o Shri Anilkumar Joshi
Age-50 years, Senior Assistant, SAC,
Residing at No.2/B Uttamnagar, D'Cabin,
Sabarmati, Ahmedabad-38005
52. ASHESH MEHTA,
S/o Shri Hasmukhlal C. Mehta
Age -50, Senior Assistant, SAC
Residing at No.M/70/4/6, Pragatinagar Naranpura,
Ahmedabad-380013
53. VED PRAKASH,
S/o Shri Ramswaroop
Age-38 years, Senior Assistant, SAC,
C/1/13, Dos Housing Colony,
Vastrapur, Ahmedabad-380015

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54. APURV BABUBHAI PRAJAPATI,
S/o Shri Babubhai H. Prajapati
Age-34 years, Senior Assistant, SAC,
Residing No.5, Shreeji Park B/H. Balapir
Bus-Stand Society, Adalaj,
Dist. - Gandhinagar
55. RAVI VAGHELA,
S/o Shri Natvarlal Vaghela
Age-32 Senior Assistant, SAC
Residing at No.303,
Swamynarayan Presidency Randesan, Gandhinagar
56. ASHISH DWARA,
S/o Pratap D Dawra
Age-30, Senior Assistant, SAC
C/41, Jay Yogiraj Soc, Nr. Sardarnagar Police Station
Ahmedabad-382475
57. SMT. SMITA PILLAI,
W/o Shri Binoy Pillai
Age-37, Senior Assistant, SAC
Residing at No.C/206, Surel Apartment Near Satyagrah
Chhavavi, Satellite,
Ahmedabad-380 015.
58. PRAMOD JOSHI,
S/o Shri Girishcandra Joshi
Age-44, Senior Assistant, SAC
Residing at No.T-401, Srinandnagar Part-2 Vejalpur,
Ahmedabad-380051
59. VIKASH SHARMA,
S/o Shri NARENDRA L SHARMA
Age-28 years, Senior Assistant-SAC
1, Avani Row House, Behind Lal Bunglow,
Opp. Rajhans Society,
Navrangpura, Ahmedabad-380006
60. Ms. TRUPTI PAULBHAI CHAUHAN,
D/o Shri Paulbhai P Chauhan,
Age-31, Senior Assistant-SAC
B-1/17, DOS Housing Colony, Opp. New IIM,

Vastrapur, Ahmedabad-380015

61. KAUSHAL MISTRY,
S/of Shri Himmatlal A Mistry
Age-32, Senior Assistant-SAC D-103,
SarathiAppartments, Near Visat Petrol Pump,

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Sabarmati, Ahmedabad-380005

62. HIRENKUMAR J. PARMAR,
S/o of Shri Jayantibhai Parmar
Age-26, Senior Assistant-SAC
T-23, Shivashish Society, Vallabh Park,
D-Cabin, Sabarmati, Ahmedabad-380019
63. GOPALKRISHNAN J. NAIR,
S/o of Shri Jayraman K M
Age-31, Senior Assistant-SAC C-1/16,
DOS Housing Colony, Vikramnagar,
Ambli-Bopal Road, Ahmedabad-380058
64. Ms.SNEHA KIRANBHAI JADAV,
D/o Shri Kiranbhai G Jadav
26 years, Senior Assistant-SAC 15,
Mahatma Gandhikunj Society,
Ambawadi, Ahmedabad-380015 R0
65. Ms. PRIYANKA BODAR,
D/o Shri Bachubhai M Bodar
Age-31, Senior Assistant-SAC 4/40
Nidhi Appartments, Opp. G.H.B. Office,
Pragatinagar-Naranpura,
Ahmedabad-380013
66. Ms. PRAISY ROBIN,
D/o of Shri K C Abraham
Age-36, Senior Assistant-SAC
A-12/A, Avani Hills, Mansi Cross Road,
Satellite, Ahmedabad-380015
67. Ms.PALLAVI B. ASARI,
D/o Shri Balvanbhai M Asari
Age-40, Senior Assistant-SAC

C-10/12, DOS Housing Colony, Vikramnagar,
Ambli-Bopal Road, Ahmedabad-380058.

68. Ms.NEHA PANDEY,
D/o Shri Manmohan Pandey
Age-29, Senior Assistant, SAC
Res B/2/5, Vastrapur DOS Colony
Ahmedabad-380015.
69. SMT. SUNITA V. BHARANI,
W/o Shri Vasudev P Bharani
Age-47, Senior Assistant
Residing at No.A/204,
Himalaya Greens Flat Near Galaxy,

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Naroda, Ahmedabad-382330

70. NIKUNJ SHAH,
S/o Shri Mukeshbhai Shah
Age-28, Senior Assistant, SAC
Residing at No.B/4, Vikramnagar Colony
Bopal-Ambali Road, Ahmedabad-380058
71. SAURAV KUMAR
S/o Shri Shiv Lalan
Age-25, Senior Assistant, SAC
Residing at No.B/3/5 Vikramnagar colony
Ahmedabad-380058
72. SHIVSHANKAR WARHADE,
S/o Shri Sitaram Warhade
Age-56, Senior Assistant, SAC
Residing at No.C/8/7, Vikramnagar Colony
Bopal-Ambali Road, Ahmedabad-380058

.....Applicants

(By Advocate: Mr. M.S. Rao)

Versus

1. UNION OF INDIA
(To be represented through its

Secretary to the Government of India),
Department of Expenditure,
(Implementation Cell)
Ministry of Finance,
Govt. of India,
North Block,
NEW DELHI 110 001)

2. THE SECRETARY TO THE GOVERNMENT OF INDIA,
Department of Space (DoS),
Government of India,
Antariksh Bhavan,
New BEL Road,
BANGALORE 560 231.
3. THE SECRETARY TO THE GOVERNMENT OF INDIA,
Department of Personnel,
Ministry of Personnel, Training & Pensioners Grievances,

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Govt. of India, North Block,
NEW DELHI 110 001.

4. THE DIRECTOR,
Space Applications Centre, (SAC)
Department of Space
Govt. of India
Satellite
AHMEDABAD 380 015.

.....Respondents

(By Advocate: Ms. R.R Patel)

ORDER

Per : Hon'ble Dr.Hukum Singh Meena, Member (A)

In the instant OA, the applicants including the original applicants of O.A. No. 208/2012 who are working on different posts such as Senior Assistant/Personal Assistant etc., in the Space Application Centre at Ahmedabad which is one of the unit of ISRO under the Department of Space, their demand/claim for grant of Grade Pay of Rs. 4600/- w.e.f. 01.01.2006 at par with their counterparts i.e. Assistants and Personal Assistants working in the Secretariat Organization of the Department of

Space (DOS) and with those working in the Secretariat of the Departments of Government of India has been rejected by the Ministry of Finance, Department of Expenditure, GoI vide Order No. 50(2)/E.III(B)/2011 dated 06th June 2017 (Annexure A/1). Being aggrieved, the applicant jointly filed the present OA under Section 19 of the Administrative Tribunals Act, 1985 seeking following reliefs:-

8. RELIEFS:-

A. call upon the official respondents herein to place before this Hon'ble Tribunal the entire original departmental file / noting sheet, etc., which gave rise to the issuance of the 2025.12.18 PRATIK VYAS 14:22:52+05'30' Respondent No.1's impugned communication bearing No.50(2)/E.III(B)/2011 dated 06.06.2017 at Annexure-A/1 hereto;

B. upon a close perusal of the said files/noting sheet, etc., your Lordships may be graciously pleased to quash and set aside the aforesaid impugned communication bearing No 50(2)/E.III(B)/2011 dated 06.06.2017 at Annexure-A/1 hereto, holding and declaring the same to be ex facie & totally arbitrary, unreasonable, & discriminatory thereby contravening the Articles 12, 14 and 16 of the Constitution of India as also the ratio laid down by the Hon'ble Supreme Court of India in a catena of decisions on "EQUAL PAY FOR EQUAL WORK".;

C. issue appropriate directions to the respondents herein to forthwith grant to the applicants herein the higher Grade Pay of Rs.4600/- w.e.f. 1.1.2006 at par with their counterparts serving as Assistants and Personal Assistants in the DoS Hqrs., in Bangalore, with all the consequential benefits, including the consequent fresh option & also the pay re-fixation, arrears of salary & interest thereon. D. impose exemplary cost on the respondent no.1 herein for unnecessarily dragging the applicants herein to resort to this avoidable litigation.

E. grant such other and further relief/s as may be deemed fit and proper in the peculiar facts & circumstances of the present case."

2. Brief facts of the case are as under:-

2.1 That all the applicants herein are working on different posts of Senior Project Assistants, Personal Secretaries, Senior Personal Secretary, Project Personal Secretaries and Senior Assistants in the 2025.12.18 PRATIK VYAS 14:22:52+05'30' Space Application Centre at Ahmedabad, which is one of the units of ISRO under the Department of Space.

2.2 All the applicants herein submitted that as on 01.01.2006 they are entitled for Grade Pay of Rs. 4600/- at par with the Senior Assistants and Personal Assistants serving in the Secretariat Organization of the Department of Space in Bangalore as

well as with those serving in the Secretariats of the Departments of Government of India.

2.3 It was submitted that the Indian Space Research Organisation (ISRO) was established in its modern form in 1969 with Headquarters in Bengaluru, Karnataka; it is primary body for space research in India; ISRO has 17 filed units each of which is called „centre and one among them is called Space Application Centre (SAC), Ahmedabad wherein the applicants are presently working.

2.4 Further, it was submitted that when the 3rd Pay Commission pay scales were in force, the employees of ISRO and its filed units in the cadre of Personal Assistant and Assistants Gr. A and B were drawing higher pay scale in comparison to their counter parts in Department of Space (herein after referred as DoS) and in the Central Secretariat Service (herein after referred as CSS) & Central Secretariat Stenographers Service (herein after referred as CSSS) like under the 3rd CPC, the pay scale of the Personal Assistant A in the field unit was Rs. 550-850/- and the pay scale of Personal Assistant in the CSSS was Rs. 425-800/-.

2.5 Thereafter, on implementation of the 4th CPC in the year 1987, the said pay scale of Rs. 550-850/- of Personal Assistant in fields unit was revised to Rs. 1600-2660 and further the DoS vide order dated 23.07.1987 revised the pay scale of Rs. 1600-2660 to Rs. 1640-2990/- .

2025.12.18 PRATIK VYAS 14:22:52+05'30' Subsequently, in terms of order dated 23rd May, 1989 passed by CAT, Principal Bench in O.A. No. 1538/87, the DoPT vide its OM dated 31st July, 1990 further revised the 4th CPC pay scale of Rs. 1400-2600/- (unrevised version of Rs. 425-800/-) to Rs. 1640- 2900/- for the Assistant Grade of CSS and Grade „C Stenographers of CSSS. The DoPT in the said OM also stated that the same revised pay scale would also be applicable to Assistant and Stenographers in other organizations like Ministry of External Affairs which are not participating in the CSS and CSSS but where the posts were in comparable grades with same classification and pay scales and the method of recruitment through open competitive examination was also the same (Annexure A/2 refer).

2.6 In this regard, the applicants submitted that earlier when the 3rd CPC was in force, the staff in the field unit of ISRO such as Assistant and Personal Assistant were drawing higher pay scale compared to their counterparts in CSS and CSSS and the same continued even in the 4th CPC, however, it was rectified by the DoPT vide OM dated 31.07.1990 in compliance of the order dated 23rd May, 1989 passed by CAT, Principal Bench in O.A. No. 1538/87 consequently, the Assistants and Personal Assistants serving in CSS and CSSS respectively were brought at par with Assistants and Personal Assistants working in the field unit of ISRO.

2.7 It is stated that the Government of India, Department of Space Bangalore vide its OM dated 17.05.1995 had granted the pay scale of Rs. 1640-2900/- to the post of Assistant „B in ISRO Centers/Units by considering the fact that the administrative staff in ISRO, are not confined to desk related jobs but are also assigned project related works (Annexure A/3).

In this regard, it is submitted that the applicants herein cannot be deprived of the parity between those serving in the field 2025.12.18 PRATIK VYAS 14:22:52+05'30' units of ISRO in the aforesaid cadres and those serving in the DoS, CSS & CSSS.

2.8 Further, they submitted that as a result of 5th CPC recommendation, the scale of the applicants herein was revised to Rs. 5000-8000/- and Rs. 5500-9000/- as the case may be and the parity which existed in the 4th CPC between Personal Assistants and Assistants working in the field units of ISRO and those working in DoS, CSS & CSSS came to be disturbed as the scale of Assistants/PAs working in CSS/CSSS was increased from Rs. 5500- 175-9000 to Rs. 6500-20-10500.

2.9 Being aggrieved by the aforesaid decision, the local union at the JCM Level had raised the grievance of the applicants with the DoS Headquarters, however, the DoS vide letter dated 19.04.2007 informed that as per policy decision of the Department of Expenditure/Ministry of Finance OM dated 16.03.2007, the proposals for up-gradation of the posts of PAs/Assistants claiming parity with CSS/CSSS should not be examined in the Ministry of Finance and that such proposals should be referred to VI CPC (Annexure A/4 refer).

2.10 Further, the applicants contended that the 6th CPC was set up on 05.10.2006 and after analyzing the functionalities and functions of various posts exiting in the different Departments and Ministries submitted its Report dated 08.08.2007 to the Central Government of which para 3.1.3 of Chapter 3.1 are relevant to the applicants herein is reproduced herein below:-

"Para - 3.1.3

(i) Higher pay scales in the Secretariat offices may have been justified in the past when formulation of proper policies was of paramount importance. The present position is different. Today, the weakest link in respect of any Government policy is at the delivery stage. This phenomenon is not endemic to India.

Internationally also, there is an increasing emphasis on 2025.12.18 PRATIK VYAS 14:22:52+05'30' strengthening the delivery lines and decentralization with greater role being assigned at delivery points which actually determine the benefit that the common citizen is going to derive out of any policy initiative of the Government. The field offices are at the cutting edge of administration and may, in most cases, determine whether a particular policy turns out to be a success or a failure in terms of actual benefit to the consumer. Accordingly, the time has come to grant parity between similarly placed personnel employed in field offices and in the Secretariat. This parity will need to be absolute till the grade of Assistant. Beyond this, it may not be possible or even justified to grant complete parity because the hierarchy and career progression will need to be different taking in view the functional considerations and relativities across the board.

(ii) Parity between Field Offices; the Secretariat; the technical posts; and the work shop staff and it is accepted by the Government of India;"

2.11 Further, it was submitted that as per the recommendation of the 6th CPC, the three pay scales viz Rs. 5000-8000/-, Rs. 5500-9000/- and Rs. 6500-10500/- were merged and replaced by revised pay structure of Grade Pay of Rs. 4200/- in Pay Band 2 (Rs. 9300-34800/-) and the 6th CPC in para 2.2.21 (V) of its Report recommended that on account of merger of the aforesaid three scales, some posts which constituted feeder and promotion grades would come to lie in an identical grade and therefore, recommendations were given in the report for granting higher grade pay of Rs. 4600/- to some categories of these posts and in case if the posts in these two scales of Rs. 5500- 9000 and Rs. 6500-10,500/- cannot be merged based on functional disturbance than, the posts in scale of Rs. 5500-9000/- should be merged with the posts in the scale of Rs. 6500-10500/- with up- gradation in the next higher grade in PB-2 with Grade Pay Rs. 4600/- corresponding to pre-revised scale of Rs. 7450-11500/-.

2.12 In this regard, learned counsel for the applicants submitted that the said recommendations of the 6th CPC was accepted by the 2025.12.18 PRATIK VYAS 14:22:52+05'30' Government of India vide Ministry of Finance OM dated 29.08.2008. Meaning thereby, as on 01.01.2006 (cut-off date for the 6th CPC pay scale) all the Assistants/Personal Assistants in the Secretariat would be deemed to be in the pay scale of Rs. 6500-10500/- before their revision under the 6th CPC.

2.13 Therefore, the 6th CPC in para 3.1.8 of its Report had recommended that "....the entry pay scale of Section Officers in Secretariat Offices will, therefore, need to be upgraded especially when the post is presently in an identical scale as that of the feeder post of Assistants. In this context, it is seen that the pay scale of Assistants in CSS was increased in 2006. From 01.01.2006, the revised scales being recommended by the Commission shall take effect. Thus, the posts of Section Officer and Assistant will come to lie in an identical scale from 01.01.2006 itself on account of restructuring/merger of the scales Rs. 5500-9000 and Rs. 6500-10500 respectively accordingly in all cases where promotion and feeder posts have come to lie in an identical scale pursuant to rationalization of the scales of Rs. 6500-10500/- and 5500-9000/- and it is not found feasible to merge the posts, the next higher grade corresponding to the pre-revised scale of Rs. 7450-1150/- should be given to the Section Officers..."

2.14 Therefore, with the conjoint reading of 6th CPC observation/recommendation contained in para 3.1.3, 3.1.7, 3.1.8 & 3.1.9, it was explicitly evident that those erstwhile Senior Assistants B and Senior Assistants A who are now serving as Senior Assistant in the merged cadre as well as those Personal Assistants A/Personal Assistants are lawfully entitled to grant of pay scale of erstwhile unrevised pay scale of Rs. 6500-10500/- as on 01.01.2006 since these erstwhile Senior Assistants B and Senior Assistants A fall within "common categories" of staff which are engaged in similar functions spread across various ministries/departments/organizations of the 2025.12.18 PRATIK VYAS 14:22:52+05'30' Central Government and that these common categories of staff are not limited to any specific ministry or department and therefore any decision taken for them impacts more than one ministry/department/organization as defined in para 3.8.1 of 6th CPC Report.

2.15 Subsequently, the President in exercise of his power conferred by proviso as laid down under Article 309 of Constitution of India published a notification dated 29.08.2009 in the official Gazette and framed Central Civil Services (Revised Pay) Rules, 2008. Learned counsel for the applicants by referring the item (ii) of Section Part-B in Section II and also in the pari material item (ii) of Section I of Part C of the aforesaid official gazette dated 29.08.2008 submitted that the erstwhile posts of Senior Assistant B and Senior Assistant B and the posts of Personal Assistants A and Personal Assistants in the erstwhile pay scale of Rs. 5000-8000/- and Rs. 5500-9000/- should be merged with the post in the scale of Rs. 6500-10500/- as on 01.01.2006 and then their pay should be fixed in the corresponding revised pay scale with appropriate Grade Pay.

Thereafter, the respondent no. 2 herein, in pursuance of GoI's Resolution & Gazette Notification dated 29.08.2008 decided to revise the pay scales of employees working in Department of Space and ISRO and in this issued an OM dated 12.09.2008 whereby while revising the pay scales, the respondent no. 2 did not revise the pay scales of all those erstwhile Senior Assistants B and Assistants A & Personal Assistants serving in the field unit of ISRO.

2.16 Therefore, it can be seen that, the respondent no. 2 vide OM dated 12.09.2008 have not given effect to the direction of the 6th CPC which was accepted by the GoI Resolution & Gazette Notification dated 29.08.2008 to merge the posts carrying the unrevised pay scale of Rs. 5000-8000/- & Rs. 5500-9000/- into a post carrying the pay scale of the unrevised pay scale of Rs. 6500-10500/- as on 01.01.2006. 2025.12.18 PRATIK VYAS 14:22:52+05'30' and as such those Senior Assistants A and Senior Assistants B as also Personal Assistants serving in the field are left out and not given higher pay scale.

2.17 It was stated that 17 equated posts are there in the scale of Rs. 6500-10500/- which belong to Field Offices; the Secretariat; the technical posts; and the work shop staff of DoS/ISRO which are equivalent to Assistants and as per recommendation of 6th CPC, the respondents herein were required to maintain parity in terms of hierarchy up to the level of Assistants between office staff in field and secretariat office by granting equal grade pay.

2.18 Thereafter, in response to RTI application dated 19.03.2009, it was informed that the up-gradation of scale of Rs. 6500-10500 (PR) into PB-2 Rs. 9300-34800 with a grade pay of Rs. 4800/- in the place of Grade Pay of Rs. 4200/- for Sr. Project Assistant in DOS/ISRO has been done with the approval of the competent authority within the Department of Space. Therefore, by following the same principle/procedure, the claim of the applicants can also be considered by the respondents. However, it was not done.

2.19 Subsequently, pursuant decision taken in the 34th meeting of the DC JCM Staff, a committee was constituted by the DOS office vide order dated 15.12.2008 and before the said committee the union had raised the issue that the Senior Assistants & Personal Assistants as on 01.01.2006 were entitled to the Grade Pay of Rs. 4800/- in terms of the recommendation of the 6th CPC, GoI Resolution & Gazette Notification both dated 29.08.2008 and CCS (Revised Pay Scales) Rule, 2008.

2.20 Thereafter, the respondent no. 1 issued an OM dated 28.07.2009 whereby to introduce parity between clerical and secretarial personnel of DOS and ISRO in the matter of scale of pay 2025.12.18 PRATIK VYAS 14:22:52+05'30' the post of Sr. Assistant A and Sr. Assistant B merged and placed in the pay band of Rs. 9300-34800/- with GP Rs. 4200/- with the re-designation as Senior Assistant with immediate effect. However, instead of GP Rs. 4800/-, GP Rs. 4200/- was assigned. Therefore, it was evident that the aforesaid action of the respondent no. 1 was in violation of CCS (Revised Pay Scale) Rules, 2008 as the respondents ought to have upgraded the pay of Senior Assistants A and Sr. Assistants B to Rs. 6500-10500/- w.e.f. 01.01.2006 and in consequence of it, higher grade pay of Rs. 4600/- ought to have been granted to them. Further, in this regard, it was submitted that the aforesaid order vide OM ought to have been issued before issuance of OM dated 12.09.2008.

2.21 Subsequently, in the second meeting of the DAC, the union again submitted that the higher grade pay of Rs. 4800/- may be given to all those erstwhile Senior Assistants A, Senior Assistants B and Personal Assistants working in field office at par with those categories of 17 equated posts who were granted the Grade Pay of Rs. 4800/- by considering the fact that their erstwhile pay scale was Rs. 6500- 10500/-. Subsequently, the said point was raised at various meetings, however, no definite action was taken and it was conveyed that it was a policy matter and it would be examined in the department.

2.22 The respondent no.2 herein, issued an Office Memorandum dated 12.11.2010 whereby while implementing the report of the High Power Committee it was held that the scientific/technical/library assistants who were granted the Grade Pay of Rs.4200/- under the 6 CPC would be paid the higher Grade Pay of Rs.4600/- while the Senior Scientific/Technical Assistants (previously designated as Sci/Technical Assistants Gr.C) who were granted the Grade Pay of Rs.4600/- would be paid the higher Grade Pay of Rs.4800/- (Annexure A/9).

2025.12.18 PRATIK VYAS 14:22:52+05'30' 2.23 Thereafter, the respondent no.2 issued another OM dated 23.12.2010 whereby grade pay of Rs. 4600 to Rs. 5500-9000 (PR) and Rs. 4800 to Rs. 6500-10500 (PR) was granted to staff in Para-medical cadre in DOS/ISRO respectively. However, in the case of those erstwhile Senior Assistants A and Sr. Assistants B and also the Personal Assistants, the respondents herein have left their case to the discretion of the Ministry of Finance.

2.24 It was stated that the respondent no.2 issued an OM dated 01.02.2012 whereby in terms of the Department of Expenditure OM dated 16.11.2009, the Assistants and Personal Assistants in DOS Secretariat were extended the benefits of Grade Pay of Rs.4600/- in PB-2 w.e.f. 1.1.2006. However, to utter surprise of the applicants herein again who were the erstwhile Senior Assistants A and Senior Assistants B and now serving as Senior Assistants in the merged cadre and also the Personal Assistants serving in SAC Ahmedabad were not extended the benefits of the aforementioned scale.

2.25 In this regard, the applicants contended that the respondent no. 2 vide OM dated 01.02.2012, that the DOS had given effect to the 6th CPC recommendations and granted the pay scale of Rs.6500-10500/- to the Assistants and PAs serving in DOS Secretariat as on 01.01.2006, while they were actually drawing the pay scale of Rs.5500-9000/-. As mentioned earlier that in the past the DOS vide OM dated 28.7.2009 had granted full parity between the administrative working staff in

DOS Secretariat and ISRO field units, than why those Senior Assistants and Personal Assistants working in the field unit were not granted at least the grade pay of Rs.4600/-?

2.26 Being aggrieved by the aforesaid decision of the respondent, 32 applicants who are amongst the present group of 72 applicants herein had approached this Hon'ble Tribunal by way of filing OA No.208/2012 and this Tribunal vide order dated 06.05.2016 disposed 2025.12.18 PRATIK VYAS 14:22:52+05'30' of the OA with the direction upon the applicants therein to submit a detailed representation pointing out their entitlement for fixing the grade pay @ Rs. 4600 within a period of one month from the date of receipt of a copy of this order and in turn, the respondent no. 2 i.e. the Secretary, Department of Expenditure, Ministry of Finance was directed to examine the whole issue afresh and would decide the issue within three months from the date of receipt of such representation.

2.27 Thereafter, in compliance of the aforesaid directions, some of the applicants herein submitted a joint representation dated 27.05.2016 to the Respondent No.1 and thereafter a further representation dated 10.06.2016 was also submitted to the DoE whereby additional justifications in support of their demand for pay parity was given.

2.28 Subsequently, for consideration the representation of the applicants, the office of the original respondent no.1 vide its Office Memorandum dated 13.06.2016 had requested the DoS, Bengaluru to furnish to the Department of Expenditure its proposal & its details in a file, routed through IFD, for further examination and decision at the level of the DoE. Thereafter, one of the original applicants of the said OA on behalf of all the applicants submitted another representation dated 27.06.2016 to the DoE.

2.29 Thereafter, in consonance with the OM dated 13.06.2016, the Department of Space Hqrs., had duly submitted its proposal along with all the requisite particulars with regard to the issue in question vide its communication bearing No.A.12013/2/2010-1 dated 22.07.2016 and further various clarifications as sought for by the DoE was duly communicated by the DoS Headquarters.

2.30 The applicants further submitted that even the DoS Headquarters., Bengaluru, while clarifying various queries to DoE 2025.12.18 PRATIK VYAS 14:22:52+05'30' vide Office Memorandum No.A-12013/2/2010-1 (Vol.II) dated 09.01.2017 apart from submitting point- wise clarification to the DoE's various queries raised in vide dated 15.12.2016, had requested the DoE to accord its approval for assigning the Grade Pay of Rs.4600/- in PB-2 (6th CPC) to the Sr.Assistasnts and Personal Assistants in ISRO w.e.f. 1.1.2006.

2.31 The respondent no. 1 vide a communication No.50(2)/E.III(B)/2011 dated 06.06.2017 rejected the demand of the applicants of the OA No. 208/2012 for the grant of the Grade Pay of Rs.4600/- at par with their counterparts serving in the DoS Secretariat., in Bangalore, on the ground that there was no justification on merits to revise the pay scale of Sr. Assistants/PAs of ISRO to Grade Pay of Rs.4600/-. Hence, the applicants therein along with some other employees approached this Tribunal by way of filing the present OA.

3. In support of the prayer sought in the OA, Advocate Mr. M.S. Rao for the applicants mainly argued as under:-

3.1 That the respondent no.2 vide OM dated 01.02.2012 whereby, in terms of the Department of Expenditure OM dated 16.11.2009, extended the benefit of Grade Pay of Rs.4600/- in PB-2 w.e.f. 1.1.2006 to the Assistants and Personal Assistants in DOS Secretariat.

However, the applicants herein who are counterparts to the Assistants/Personal Assistants of the DoS were not granted the benefit of the aforementioned scale.

3.2 Learned counsel for the applicants by referring the submissions made in the impugned communication dated 06.06.2017 by the DoE to the effect that the headquarters of Central Government residing in the Secretariat Organization is on a different footing vis a vis the non-Secretariat Organisations or attached/Field offices, submitted that the 2025.12.18 PRATIK VYAS 14:22:52+05'30' above statement was contrary to the observations/recommendations of the 6th CPC as enumerated in para 3.1.3 which states that "Higher pay scales in the Secretariat offices may have been justified in the past when formulation of proper policies was of paramount importance. The present position is different. Today, the weakest link in respect of any Government policy is at the delivery stage. This phenomenon is not endemic to India. Internationally also, there is an increasing emphasis on strengthening the delivery lines and decentralization with greater role being assigned at delivery points which actually determine the benefit that the common citizen is going to derive out of any policy initiative of the Government. The field offices are at the cutting edge of administration and may, in most cases, determine whether a particular policy turns out to be a success or a failure in terms of actual benefit to the consumer. Accordingly, the time has come to grant parity between similarly placed personnel employed in field offices and in the Secretariat. This parity will need to be absolute till the grade of Assistant. Beyond this, it may not be possible or even justified to grant complete parity because the hierarchy and career progression will need to be different taking in view the functional considerations and relativities across the board.

3.3 Therefore, it is clear that as per *ibid* recommendation of the 6th CPC, the parity between the field offices and the secretariat ought to have been maintained by the respondents and consequently, the applicants herein should have been granted Grade Pay of Rs.4600/- at par with their counterparts serving in the DoS Secretariat.

3.4 Further, learned counsel for the applicants by referring the OM dated 23.07.1987 issued by DoS submitted that when the recommendations of the 4th CPC was implemented in the year 1986, the post Personal Assistant B (existing scale Rs. 1640-60-2600-EB- 75-2900) was upgraded to the scale of pay of Rs. 2000-60-2300-EB- 75-3200 in DOS/ISRO Centres/Units with the approval of Member 2025.12.18 PRATIK VYAS 14:22:52+05'30' for Finance, Space Commission. It was also submitted that the Ministry of Finance, Department of Expenditure vide communication dated 18.01.1995, 29.03.1995 and ISRO Headquarter OM 17.05.1995 approved the pay parity between the units of ISRO and the Central Secretariat Staff by virtue of which the 4th CPC pay scale of Rs. 1640- 2900/- was extended to Senior Assistants serving in the units of ISRO with the provisions that 33 per cent

of the posts shall be filled through direct recruitment, which was implemented and is currently in practice in ISRO.

3.5 Learned counsel again contended that when the 5th CPC recommendation were introduced, the pay parity was continued as the Senior Assistants/Personal Assistants serving in the units of ISRO were given the pay scale of Rs. 5500-9000/- at par with their counterparts in DoS, CSS & CSSS and even under the 6th CPC, the post of Senior Assistants/Personal Assistants in the units of ISRO were treated at par with their counterparts in DoS, CSS & CSSS by granting them Grade Pay of Rs. 4200/- till, 15.11.2009. The DoE vide order dated 16.11.2009 granted higher Grade Pay of Rs. 4600/- to the Assistants/Personal Assistants retrospectively w.e.f. 01.01.2006 to the Assistants/Personal Assistants working in CSS/CSSS and thereafter, the respondent no.2 vide OM dated 01.02.2012 in terms of the Department of Expenditure OM dated 16.11.2009, extended the same benefit of Grade Pay of Rs.4600/- in PB-2 w.e.f. 1.1.2006 to the Assistants and Personal Assistants in DOS Secretariat whereas the applicants herein who were the erstwhile Senior Assistants A and Senior Assistants B and now serving as Senior Assistants in the merged cadre as well as the Personal Assistants serving in SAC Ahmedabad were not granted the aforesaid benefits of the aforementioned scale.

3.6 Learned counsel for the applicants argued that in case of the Stenographers Grade „C /Court Masters of the various Benches of this 2025.12.18 PRATIK VYAS 14:22:52+05'30' Tribunal who were seeking benefits of re-fixation of pay in the scale of Rs. 6500-10500 at par with their counterparts in CSS/CSSS w.e.f. 15.09.2006 and the Grade pay of Rs. 4600/- w.e.f. 01.01.2006, the Principal Bench of this Tribunal in O.A. No. 1165/2010 vide judgment dated 09.04.2010 directed the respondents to decide the reliefs prayed therein in the background of historical parity of Central Administrative Tribunal staff with their counterparts in CSS/CSSS and thereafter, in compliance with the direction issued by the Principal Bench in O.A. No. 1165/2010 and with the concurrence of the Ministry of Finance (Department of Expenditure), the DoPT vide order dated 06.05.2010 granted the Grade Pay of Rs. 4600/- to the Assistants/Stenographers Gr. „C /Court Masters in CAT offices. In this regard, learned counsel for the applicants vehemently argued that why the said benefits on the ground of historical parity cannot be extended to the applicants herein at par with their counterparts in DoS/CSS & CSSS and even when the 6th CPC, in para 3.1.3, clearly recommended to grant parity between similarly placed personnel employed in field offices and in the Secretariat?

3.7 Learned counsel for the applicants by relying on the file noting dated 10.08.2010 Annexure A/32 submitted that the Assistants/Personal Assistants working in the Field Offices of the Research & Analysis Wing (R&AW) were also granted Grade Pay of Rs. 4600 w.e.f. 01.01.2006 at par with CSS/CSSS. Further, he also relied on the various similar cases where based on the historical parity employees similarly situated to the applicants herein, serving in field offices of Aviation Research Centre, Special Frontier Force were granted grade pay of Rs. 4600 at par with the Assistants & Personal Assistants serving in IB & RAW with the approval of the Department of Expenditure, however, in the case of the applicants herein the Department of Expenditure vide impugned order dated 06.06.2017 rejected the claim of the applicant.

2025.12.18 PRATIK VYAS 14:22:52+05'30' 3.8 Learned counsel for the applicants by referring the para 11.46.15 and para 11.46.16 of the 7th CPC report submitted that in the said para the commission held that general recommendation as laid down in Chapter 7.1 on pay parity between Field Offices and Organizational Office would also be applicable in this case which is reproduced below:-

Secretariat and Non-Secretariat Staff "11.16.15 A demand has been made to upgrade the post of Senior Assistant in ISRO from present GP 4200 to GP 4600 at par with Assistant in DOS. Similarly a demand has also been made to upgrade the post of Personal Assistant in ISRO from its present GP 4200 to GP 4600 at par with Personal Assistant in DOS. The justification given is that both Senior Assistants and Personal Assistants in ISRO at their preceding levels are in the GP 2400 and carry the minimum entry qualification of graduation with first class, which is the same as that of the preceding levels of Assistants and Personal Assistants in DOS. Analysis and Recommendations 11.46.16 The commission has considered the parity issue between secretariat and non-secretariat offices in its Chapter 7.1 on Headquarters Organizations in GoI and Office Staff in field offices. The general recommendations made therein will apply to all categories of Administrative Staff in DOS/ISRO as well."

However, the DoE by ignoring the aforesaid finding of the 7 th CPC Report had passed the impugned order dated 06.06.2017.

3.9 Learned counsel for the applicants additionally stated that between ISRO & DOS there are similarity in service conditions that inter alia includes common induction level for Assistant/UDC with common educational qualification of graduation first class, common structure of Posts, common promotion norms/rules, common pay structure with GP-2400, 4200, 4800 with NFSG-5400 but only the 2025.12.18 PRATIK VYAS 14:22:52+05'30' Assistant/Personal Assistant serving in DOS Secretariat are entitled for higher grade pay of Rs. 4600/- which is in clear violation of the Article 12, 14 and 16 of the Constitution of India.

3.10 Further, learned counsel for the applicants by referring the Department of Space communication dated 22.07.2016 (Annexure A/16) whereby while replying to the Ministry of Finance, Department of Expenditure OM dated 13.06.2016 on the subject of proposal of the Department for assigning grade pay of Rs. 4600/- in PB-2 to the Sr. Assistants and Personal Assistants in ISRO at par with the similar cadres in Department of Space Secretariat, submitted and duly admitted by DoS that the duties and responsibilities; entry level qualification, and requirements for administrative staff both in DOS Secretariat and ISRO are identical; it is necessary to align both these cadres in all respect, such as pay scales, service conditions as it would bring out synergy within two important wings of Department of Space and would also enable movement of personnel between DOS and ISRO. In this regard, learned counsel for the applicants relied on the judgment passed by the Hon ble Supreme Court of India in SLP No. 33048/2011 dated 01.01.2013 wherein the Hon ble Apex Court upheld that when two posts under different wings of the same Ministry are not only identical but also involve the performance of the same nature; it will be unreasonable and unjust to discriminate between the two in the matter of pay. Therefore, the action

of the Department of Expenditure to turn down the legitimate claim of the applicants is not tenable in the eyes of law.

3.11 Thereafter, learned counsel for the applicants by relying on the query put forth by the Department of Expenditure vide para 3 of Letter No. 50(2)/E.III(B)/2011 dated 15.12.2016 (Annexure A/20) questioned that why the Sr. Assistant/PA serving in the units of ISRO were not being extended GP-4600 at par with Assistant/PA of DOS Secretariat when Sr. Assistant/PA/Assistant of DOS and ISRO are 2025.12.18 PRATIK VYAS 14:22:52+05'30' appointed on the basis of common recruitment Rules and posted vice- versa? Further, the DOS while replying to the said query of the DoE submitted that in the units of ISRO there is an element of „direct recruitment for the posts of Senior Assistants & Personal Assistants. Moreover, such direct recruits as well as promotee Senior Assistants/Personal Assistants were/are subjected to posting from ISRO units to DoS and vice versa. However, the DoE without considering the aforesaid issue rejected the claim of the applicants on the subject of pay parity with DOS/CSS/CSSS.

3.12 Learned counsel for the applicants by referring the para 9-iv of the File noting of Ministry of Finance dated 05.06.2017 (Annexure A/43) submitted that the Finance Secretary had approved grant of benefit of GP 4600/- to the Assistants/PAs of Central Administrative Tribunal, Intelligence Bureau, ICAR, Narcotics Control Bureau, Aviation Research Centre, Special Frontier Force, Research & Analysis Wing by having regard to the fact that in field offices of the aforementioned organizations there is a element of direct recruitment at the level of Assistants/PAs and accordingly they are entitled to get pay scale at par with Assistants/PA of CSS/CSSS, however, the Department of Expenditure had not taken into account the above fact while deciding the claim of the applicants as there is a element of direct recruitment for the posts of Sr. Assistants/PAs in the units of ISRO in contradistinction to the absence of any such element of direct recruitment for the posts of Assistant/PA in the DoS Secretariat.

3.13 In view of the aforesaid submissions, learned counsel for the applicants submitted that this OA deserves merit especially on the basis of historical pay parity and similarity in functionality and roles with the Assistants/Personal Assistants working in DOS/CSS/CSSS, as such the same may be allowed.

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4. Per contra, on receipt of the notice issued by this Tribunal, the respondents have filed the reply. Advocate Ms. R.R. Patel for the respondents by referring the averments made in the reply denied the claim of the applicants on following grounds:-

4.1 That the applicants herein had earlier approached this Tribunal by way of filing OA No. 208/2012 seeking the same relief which is sought in the present OA. The said OA was disposed of by this Tribunal vide Order dated 06.05.2016 with a direction to submit a representation and accordingly, the applicants have sent a joint representation to the Secretary, Department of Expenditure, Ministry of Finance for grant of Grade Pay Rs.4600/- and same was rightly rejected by assigning cogent

reasons vide Order dated 06.06.2017.

In this regard, learned counsel for the respondents submitted that as per the doctrine of Res-judicata, the same matter, which had already been decided by the Hon'ble Court of any authority cannot be raised before it again by the same party. Thus, the present OA is liable to be dismissed solely on this ground.

4.2 Learned counsel for the respondents further argued that the job profile of Assistants posted in DOS Secretariat and the commensurate remuneration is not comparable with that of Sr. Assistants/PA posted in field unit of ISRO/non-secretariat organisation.

In this regard, she submitted that the principles of equality before law and equality in opportunity in matters of public employment as enshrined under Article 14 and 16 of the Constitution of India is available to equals only and not to unequals.

4.3 Further, it is apt to mention that the Space Commission formulates the policies and oversees the implementation of the Indian Space Programme to promote the development and applications of space science and technology for the socio-economic benefit of the country and the Department of Space implements these programmes 2025.12.18 PRATIK VYAS 14:22:52+05'30' through its subordinate offices like Indian Space Research Organisations, Physical Research Laboratory, NARL, NE-SAC. Although, the Secretariat of Department of Space (DOS) and ISRO Headquarters located in Bangalore and Secretary of DOS also happens to be Chairman of ISRO, the fact remains that the ISRO is a non-Secretariat organisation under DOS.

4.4 It was contended that the main role of Secretariat is to help the Government in the tasks of policy formulations, preparation of programs in order to translate these policies into coordinated action. It is the Secretariat organisation where the direct interface between the Executive and the Legislature, to which the executive is accountable under the Constitution of India, takes place. Therefore, the Secretariat occupies a special role in the constitutional scheme of Governmental accountability. This is not the case with the non-Secretariat offices, namely attached and subordinate offices like ISRO which is primarily concerned with the execution of Government policies. Thus, the Assistants/PAs working in DoS and Assistants/PAs working in ISRO and its filed offices are on different footing therefore, their claim for parity with those Assistants/PAs working in DoS is not tenable.

4.5 The respondents submitted that the contention of the applicants that the scales of pay of Assistants and PAs working in ISRO were higher than their counterparts in the Secretariat prior to VI CPC is not factually correct. Further, she also submitted that the scales of pay of Assistants and PAs prior to V CPC have no relevance to the present OA. It is also a fact that the Sr. Assistant "A" and Sr. Assistant "B"/Personal Assistant who were drawing V CPC pay scale of Rs. 5000-8000/- and Rs. 5500-9000/- respectively have been merged and placed in the Pay Band -2 of Rs.9300-34800 with Grade Pay of Rs. 4200 from 01.01.2006 with reference to CCS (Revised Pay) Rules 2008 and DOS OM dated 12.09.2008 and therefore the Grade Pay assigned to the applicants is fully in order.

2025.12.18 PRATIK VYAS 14:22:52+05'30' 4.6 Further, the DOS vide its OM dated 17.05.1995 had granted the pay scale of Rs. 1640-2900 to the cadre of Assistant "B" after the matter was examined in the Department in detail in consultation with Ministry of Finance. The pay scale of Rs. 1640-60-2600-EB-75-2900 was assigned to the post of Assistant "B" in ISRO Centre/Units simultaneously introducing direct recruitment through open competition at such level and as far as Personal Assistants in ISRO are concerned, they are in the pre- revised scale of pay of Rs.1640-2900 w.e.f. 1.1.1986 itself.

4.7 It is a fact that based on the OM dated 25.9.2006 of Ministry of Finance, the Department had taken up the issue with the Ministry of Finance for upward revision of the scale of pay of Senior Assistants and Personal Assistants of ISRO from Rs.5500-9000 to Rs.6500- 10500 w.e.f. 15.9.2006. However, the Ministry of Finance had advised the Department of Space to refer the matter to the 6th Central Pay Commission and the 6th CPC in para 3.1.13 read with para 3.1.14 of its Report made a general recommendation for the principle of parity between field and Secretariat offices till the grade of Assistants. In the specific case of ISRO, the Commission in Para 7.50.17 of its report has given reference to its general recommendation of parity in the scale of administrative staff between the Secretariat and the field offices. Thus, the issue of pay scale of Sr. Assistant/PA in ISRO vis-à-vis the Assistants/PAs of the Secretariat in principle is to be seen in the same light as that between field offices and the Secretariat of the Government of India.

4.8 Learned counsel for the respondents further submitted that though the Commission did recommend for parity for field and secretariat offices at least up to the grade of Assistants (Para 3.1.14 read with Para 3.1.3), the Commission in Para 3.1.9 took note of the pre-revised pay scale of Assistants at Rs. 6500-10500/- in the 2025.12.18 PRATIK VYAS 14:22:52+05'30' secretariat while in case of Assistants of field offices has taken note of pay scale of Assistants at lower pay scale of Rs. 5000-8000/-. Further, it was mentioned that while the pre-revised pay scale of Rs. 5000- 8000, 5500-9000, and 6500-10500/- have all been merged in the common grade pay of Rs. 4200/-, leading to grant of grade pay of Rs. 4200/- to Assistants in Secretariat (pre-revised pay scale of Rs. 6500- 10500/-) and also to Assistants in field offices (pre-revised pay scale of Rs. 5000-8000 and 5500-9000), a need was felt based on a large number of references from Administrative Ministries/Departments to upgrade the posts which were in the pre-revised pay scale of Rs. 6500-10500/- by granting them the grade pay of Rs. 4600/-. Based on this decision, orders were issued vide OM No. 1/1/2008/IC dated 13.11.2009 to place the posts which were in the pre-revised pay scale of Rs. 6500-10500/- in the grade pay of Rs. 4600/- and accordingly, the posts which were in the pre- revised pay scale of Rs. 6500-10500/- were taken out from the group of three pay scales of Rs. 5000-8000, 5500-9000 & 6500-10500 as earlier clubbed in the common grade pay of Rs. 4200/- and placed in a different category corresponding to the pre-revised pay scale of Rs. 7450-11500/- and given grade pay of Rs. 4600/-. This decision is also applicable in the case of field offices in respect of posts which were in the pre- revised pay scale of Rs. 6500- 10500/-, i.e. Superintendent/Asst. Administrative Officer, etc. but not in case of those posts which were not in the pre- revised pay scale of Rs. 6500-10,500/-. Thus, while the pay scales of Rs. 5000-8000/- and Rs. 5500-9000 were placed in one category, those of Rs. 6500- 10500/- & Rs. 7450-11500/- were placed in a different category.

Therefore, the two cases now stand on a different footing and are not comparable any longer. Since those posts in the field offices which were in the pre-revised pay scale of Rs. 6500- 10500/- are eligible for the grade pay of Rs. 4600/- , obviously the posts which were in the lower pay scale cannot be covered under this decision and as such the present case is altogether different, as these posts were in the pre-revised pay scale of Rs. 5500-9000/-.

2025.12.18 PRATIK VYAS 14:22:52+05'30' 4.9 The respondents also submitted that DOS vide Office Memorandum no. E/29011/1/2008-V dated 12.09.2008 held that the Assistant/Personal Assistant who were drawing 5th CPC pay scale of Rs. 5500- 9000 will be placed in the Pay Band- 2 of Rs.9300-34800 with Grade Pay of Rs. 4200 from 01.01.2006 and consequent upon 6th CPC recommendations by the Department of Expenditure, Ministry of Finance Resolution dated 29.08.2008, the applicants claim for Rs. 4600 Grade Pay in Pay Band-2 was not in order as the applicants were in the 5th CPC pre- revised scale of Rs.5500-9000 as on 31.12.2005 and not in the 5th CPC scale of pay of Rs.6500-10500 as on 1.1.2006. Further, they were not eligible for being placed in the 5th CPC scale of pay of Rs.6500-10500 based on any orders of the Government and hence their claim is untenable.

4.10 It was further submitted that the contention raised by the applicants that 17 categories of posts are "equated posts" was wrong as those 17 posts belonging to Field Offices who have been granted Grade Pay of Rs.4800 were not comparable with that of the Applicants as they were in higher scale of pay as on 31.12.2005 and not in Rs.5500- 9000 as in the case of Applicants .

4.11 The DOS vide its OM dated 23.12.2010 revised the Grade Pay for the para medical staff, who were in the pre-revised scale of pay of Rs. 6500-10500 as on 31.12.2005, to Grade Pay of Rs. 4800/- as on 01.01.2006 and those who were in pre- revised scale of pay of Rs. 5500-9000 to Grade Pay of Rs. 4600/- by upgrading the post and not under CCS (RP) Rules, 2008. The scientific and technical personnel are covered under Merit Promotion Scheme and they are not on the same footing as that of the Applicants . Hence, the Applicants cannot claim similar benefits which were granted to Scientific & Technical personnel.

2025.12.18 PRATIK VYAS 14:22:52+05'30' 4.12 Thereafter, the Dathan Committee Report recommended grant of grade pay of Rs.4800 to Senior Assistants and PAs in ISRO after taking the approval of Member (Finance), Space Commission. However, when the Member (Finance) further referred the matter to Department of Expenditure, Ministry of Finance wherein the Ministry of Finance did not concur the proposal of the Department for grant of Grade Pay of Rs.4800/- to PAS and Assistants.

4.13 This Tribunal vide order dated 06.05.2016 in O.A. No. 208/2012 directed the applicants to submit a detailed representation for their entitlement of Grade Pay Rs. 4600/- at par with employees in DOS, Secretariat. As per the direction of the Hon'ble Tribunal, the applicants sent a joint representation to the Secretary, Department of Expenditure, Ministry of Finance for grant of Grade Pay of Rs. 4600/- which had been carefully considered by Department of Expenditure, keeping in view all the points brought out in the aforesaid representation dated 27.05.2016 and the general principle of functional difference between the Secretariat of the various departments of

Govt. of India and the non- secretariat organization like the ISRO, because the most recent central pay commission namely 7th CPC, had also not recommended higher grade pay of Rs.4600 in case of Sr. Assistants/PA of non-secretariat organization including ISRO, the representation for grant of GP Rs.4600/- to the applicants therein in OA-208/2012 was rejected by Department of Expenditure vide speaking order No.50(2)/E.III(B)/2011 dated 06.06.2017.

4.14 Additionally, the 6th CPC recommendations dealt very comprehensively the issues brought before it on the subject of disparity between Secretariat and Field Offices. The role and responsibilities of the Secretariat and Field Offices had been identified to be different. The basic issue is of the general policy of different pay scales in the Secretariat organisations as compared to non-secretariat 2025.12.18 PRATIK VYAS 14:22:52+05'30' organisations because of the nature of functions in the Secretariat, which are policy oriented and involve the issues impinging on the direct accountability of Executive, which is vested in the Secretariat, to the Legislature.

4.15 Learned counsel for the respondents vehemently argued that there is no common seniority list of Assistants of the Secretariat of Department of Space and Sr. Assistants of ISRO. This establishes that these two are treated separately for the purpose of seniority because ISRO is not a Secretariat office. The hierarchy in the service in the given cadre in the applicants organisation is different from the Secretariat of Department of Space and CSS/CSSS. The tradition of parity and relativity claimed by the applicants has since undergone a change in view of the specific recommendation of the 6thCPC made in its report.

4.16 The Department of Expenditure has duly taken note of the recommendations of 7th CPC while considering the representation of the applicants which is evident from the order dated 06.06.2017. Since, the 7th CPC had not recommended the higher grade pay of Rs.4600 in case of Sr. Assistants/PA's of non-Secretariat organisations including ISRO, there is no justification, to grant higher pay scale of Sr. Assistants/PA's of ISRO to grade pay of Rs.4600.

4.17 Learned counsel for the respondents further submitted that the grade pay of Rs. 4600/- was given to Assistants of DOS Secretariat in the backdrop of Ministry of Finance, Department of Expenditure OM No. 1/1/2008-IC dated 16.11.2009 which was applicable to the various Secretariat Assistants/Personal Assistants of Government of India. Regarding granting of grade pay of Rs.4600 to Assistants in DOS it was clarified that DOS Secretariat is as much a Secretariat of the Government of India as any other Secretariat of other Ministries as part of the overall Central Secretariat organisation and as such simply 2025.12.18 PRATIK VYAS 14:22:52+05'30' because the Secretariat of the DOS does not participate in the Central Secretariat Service may not take away its character as a Secretarial organisation.

Further, the Appointments for the post of Assistants/PAs in ISRO and DOS are made under Common Recruitment Notification, however, the seniority lists for Assistants/PAs, in ISRO and DOS are different but the recruitment norms/recruitment rules for two are similar. The Assistants/Personal Assistants working in ISRO are posted in the Secretariat of DOS on working arrangement basis only. Similarly Assistants/Personal Assistants working in DOS are also posted in ISRO. This exercise is done purely based on the functional requirement and work load.

4.18 The DOS has always adopted the pattern of CSS for Secretariat staff. Since ISRO is a subordinate/attached office under DOS, the Sr. Assistant/PA of ISRO is not entitled for grant of GP Rs. 4600. The rejection of the claim of the applicants in OA-208/2012 for grant of GP Rs.4600/- is as per the decision of Govt of India.

4.19 Further, learned counsel for the respondents reiterated that Department of Expenditure, Ministry of Finance examined the representation dated 27.05.2016 of the applicants in OA-208/2012 and after comprehensively covering all the aspects and the general principal of functional difference between the Secretariat of the various Departments of the Govt of India and the non-Secretariat organisations like the ISRO, as also because the most recent Central Pay Commission, namely the 7th CPC, has not recommended the higher grade pay of Rs.4600 in case of Sr. Assistant/PA of non- secretariat organisations including in ISRO. It has also taken into account the financial implication on account of the higher pay scale and its repercussions in the form of chain reaction from various non secretariat organizations. It was observed by DOE that such a large public expenditure would highly be unjustified to be charged on 2025.12.18 PRATIK VYAS 14:22:52+05'30' public exchequer, especially because it seeks to dilute a long standing policy on pay scales and consequently vide Speaking Order dated 06.06.2017 rejecting the entitlement of GP Rs.4600 in respect of Sr. Assistant/PA of ISRO.

4.20 In terms of the Department of Expenditure, Ministry of Finance OM dated 16.11.2009, the Assistants and Personal Assistants in DOS Secretariat had been extended the structure of Grade Pay of Rs. 4600 in Pay Band-2 with effect from January 1, 2006 as the employees in DOS Secretariat have always been extended the pay scale and other benefits as applicable to CSS/CSSS and the same is fully in order.

Consequently, the grade pay of Rs. 4200/- in respect of Assistants & Personal Assistants appearing against Serial No. 10 of Annexure -3A to DOS OM dated 15.09.2008 stands amended to read as Rs. 4600. This is done as the Assistants/Personal Assistants in CSS/CSSS of Government of India were getting Grade pay of Rs. 4600 and Secretariat Assistant/Personal Assistant of DOS were also entitled for this Grade Pay as they are also Secretariat Staff of the Government of India.

4.21 The Department of Space has revised the scale of Assistants/PA of the Secretariat of Department of Space from Rs.5500-9000 to Rs.6500-10500 w.e.f 15.09.2006. However, the pay scale of Sr. Assistants and PAs of ISRO were not revised to Rs.6500-10500 keeping in view the status of ISRO as non-Secretariat organisation. Thus, the non-applicability of scale of Rs. 6500-10500/- in case of Sr. Assistants/PAs of ISRO further establishes that the pay scales in Secretariat of the Departments of Government of India, are on a different footing compared to assistants in non-secretariat offices of those Departments like ISRO.

4.22 Further, it is submitted that the post of Sr. Assistant/PA of ISRO cannot be equated with Assistant/PA of Department of Space.

2025.12.18 PRATIK VYAS 14:22:52+05'30' Comparison and parity of pay scales can be sought, only amongst posts are similarly placed, and not amongst dissimilar posts as the job description, nature

of output and quality of output are very different from the post with which parity is being sought by applicants .

4.23 The DOS vide its OM dated 17.05.1995 had granted the pay scale of Rs. 1640-2900 to the cadre of Assistant "B" after the matter was examined in the Department in consultation with Ministry of Finance.

The pay scale of Rs. 1640-60-2600-EB-75-2900 was assigned to the post of Assistant "B" in ISRO Centre/Units simultaneously introducing direct recruitment through open competition at such level. Further, the scales of pay of Assistants and PAs prior to Vth CPC have no relevance to the present OA and the applicants should not deviate from the V CPC pay scale drawn by them as on 31.12.2005, as their replacement scales have been assigned based on what they were drawing on 31.12.2005 consequent upon the implementation of VI CPC Recommendations. Hence, the pay scales held by the PAs and Assistants in ISRO as on 31.12.2005 is only relevant in this context.

4.24 In view of the above facts and grounds, learned counsel for the respondents prays that the OA lacks merit and as such, the same may be dismissed.

5. In response to the reply of the respondents, the applicants have filed the rejoinder and besides reiterating the averments made in the OA, it was additionally submitted as under:-

5.1 Learned counsel for the applicants submitted that the respondents cannot take diametrically opposite and contrary stand to their earlier admitted position as would be observed from contention raised by them in para-7 of reply dated 19.10.2012 & para-5 of sur-

2025.12.18 PRATIK VYAS 14:22:52+05'30' rejoinder dated 29.03.2012 filed in previous OA-208/2012 to the effect that there is no dispute in the matter of parity between the Secretariat of the DoS and Field Office of ISRO in terms of assigned equal grade pay for administrative staff of ISRO/DOS vide OM dated 12.09.2008 in terms of historical parity between ISRO and DOS (Annexure RJ1 & RJ2 refer).

6. Heard learned counsel for the parties; perused the material available on record and guidelines especially the recommendations of the 6th CPC and 7th CPC.

7. In the present case, it is an admitted fact that applicants herein are working on different posts of Senior Project Assistants, Personal Secretaries, Senior Personal Secretary, Project Personal Secretaries and Senior Assistants in the Space Application Centre at Ahmedabad, which is one of the units of ISRO under the Department of Space.

7.1 It is a fact that the 6th CPC merged the three pre-revised scale of Rs.5000-8000/-, 5500-9000/- and Rs.6500-10500/- and replaced them by the revised pay structure of Grade Pay of Rs.4200/- in Pay Band 2. The CPC also recommended a higher Grade Pay of Rs.4600/- to some categories which were in the pre-revised Pay Scale of Rs. 6500-10,500/-. However, the respondent no.1 in pursuance

of Government of India and Gazette notification dated 29.8.2008 came out with an office memorandum on 12.9.2008 stipulated that all those erstwhile Senior Assistants B, Assistants A and Personal Assistants serving in the field units of the ISRO were placed below their counterparts in identical categories of DOS Secretariat.

7.2 It is also evident that there had been historical parity between Senior Assistants/Personal Assistants in the ISRO and Assistants/Personal Assistants in DOS and CSS/CSSS till the 2025.12.18 PRATIK VYAS 14:22:52+05'30' implementation of the 6th CPC recommendation which was accepted by both the sides which is evident from narration in subsequent paras.

7.3 It is evident from the record that DOS vide its OM dated 17.05.1995 had granted the pay scale of Rs. 1640-2900 to the cadre of Assistant "B" in ISRO after the matter was examined in the Department in consultation with the Ministry of Finance. The pay scale of Rs. 1640-60-2600-EB-75-2900 was assigned to the post of Assistant B in ISRO Centre/units simultaneously introducing direct recruitment through open competition at such level which was in parity of the scales of their counterparts in DOS Secretariat and CSS/CSSS.

7.4 During the 5th CPC, the Grade Pay of Assistant and Personal Assistants of ISRO was 5500-9000/- which was similar to the Assistant and Personal Assistant working in the DOS/CSS/CSSS and even under the 6th CPC, the post of Senior Assistants/Personal Assistants in the units of ISRO were treated at par with their counterparts in DoS, CSS & CSSS by granting them Grade Pay of Rs. 4200/-. It was only when Central Government had up-graded the scale of Assistants/Personal Assistants in CSS/CSSS from Rs.5500-9000 to Rs. 6500-10500/- on 15.09.2006 w.e.f. 01.01.2006 and consequently on 15.11.2009, the DoE vide order dated 16.11.2009 granted higher Grade Pay of Rs. 4600/- to the Assistants/Personal Assistants working in CSS/CSSS and were in the pay scales of Rs. 6500-10,500/- retrospectively w.e.f. 01.01.2006 and thereafter, the respondent no.2 vide OM dated 01.02.2012 in terms of the Department of Expenditure OM dated 16.11.2009, extended the aforesaid benefits of Grade Pay of Rs.4600/- in PB-2 w.e.f. 1.1.2006 to the Assistants and Personal Assistants in DOS Secretariat, the pay parity was disturbed. However, the applicants herein who were the erstwhile Senior Assistants A and Senior Assistants B and now serving as Senior Assistants in the merged cadre and also the Personal Assistants serving in SAC 2025.12.18 PRATIK VYAS 14:22:52+05'30' Ahmedabad were not granted the benefit of the aforementioned enhanced scale on the basis that their pre revised pay scales were not up-graded from Rs. 5500-9000 to Rs. 6500-10,500/-.

7.5 It emerges from the records that as per the recommendation of the 6th CPC, the three pay scales viz Rs. 5000-8000/-, Rs. 5500-9000/- and Rs. 6500-10500/- were merged and replaced by revised pay structure of Grade Pay of Rs. 4200/- in Pay Band 2 (Rs. 9300-34800/-) and moreover, the 6th CPC in para 2.2.21 (V) of its Report recommended that on account of merger of these three scales, some posts which constituted feeder and promotion grades would come to lie in an identical grade and therefore, recommendations were given in the report for granting higher grade pay of Rs. 4600/- to some categories of these posts and in case if the posts in these three scales cannot be merged based on functional disturbance than, the posts in scale of Rs. 5000-8000/- and Rs. 5500-9000/- should be merged with the posts in the scale of Rs. 6500-10500/- with up-gradation in

the next higher grade in PB-2 with Grade Pay Rs. 4600/- corresponding to pre-revised scale of Rs. 7450-11500/-.

Thereafter, the said recommendations of the 6th CPC was accepted by the Government of India vide Ministry of Finance OM dated 13.11.2009. Resulted thereby, as on 01.01.2006 (cut-off date for the 6th CPC pay scale) all the Assistants/Personal Assistants in the Secretariat would be deemed to be in the pay scale of Rs. 6500- 10500/- before their revision under the 6th CPC.

7.6 It appears that as per the said decisions of the Ministry of Finance and DoPT, Government of India the different pay scales were assigned to the Senior Assistants/Personal Assistants working in Field Offices, ISRO and the Personal Assistants/Assistants working in DOS/CSS/CSSS.

2025.12.18 PRATIK VYAS 14:22:52+05'30' 7.7 Therefore, the applicants herein seeking relief to treat them at par with the similarly placed employees working in DOS/CSS/CSSS.

8. Thus, the core issue which is before this Tribunal is to decide that "Whether the Senior Assistants/Personal Assistants working in the ISRO and its Field Offices are entitled to have pay parity with the Assistant/Personal Assistants working in CSS/CSSS/DOS?"

9. To answer the aforementioned question, it is important to take note of some of the recommendations of the 6th CPC which are reproduced herein below:-

"Headquarters Organizations in Government of India & Office Staff in Field Offices:

3.1.1 The various Secretariats of the Ministries and Departments and of Government of India together constitute the headquarters organization. The Secretariats are chiefly involved in matters relating to formulation of policy and ensuring that these policies are executed in a coordinated and effective manner. Actual execution of these policies, however, is left to field agencies outside the Secretariat which may be either attached or subordinate offices or quasi-

Government/autonomous/public sector undertakings.

3.1.3 Higher pay scales in the Secretariat offices may have been justified in the past when formulation of proper policies was of paramount importance. The present position is different. Today, the weakest link in respect of any Government policy is at the delivery stage. This phenomenon is not endemic to India. Internationally also, there is an increasing emphasis on strengthening the delivery lines and decentralization with greater role being assigned at delivery points which actually determine the benefit that the common citizen is going to derive out of any policy initiative of the Government. The field offices are at the cutting edge of administration and may, in most cases, determine whether a particular policy turns out to be a success or a failure in terms of actual benefit to the consumer. Accordingly, the time has come to grant parity between similarly placed personnel employed in field offices and in the Secretariat. This parity will need to be absolute till the grade of Assistant. Beyond this, it may not be possible or even justified to grant

complete parity because the hierarchy and career progression will need to be 2025.12.18 PRATIK VYAS 14:22:52+05'30' different taking in view the functional considerations and relativities across the board.

3.1.9 Accordingly, the Commission recommends up-gradation of the entry scale of Section Officers in all Secretariat Services (including CSS as well as non participating ministries/ departments/organizations) to Rs.7500-12000 corresponding to the revised pay band PB 2 of Rs.8700-34800 along with grade pay of Rs.4800. Further, at par with the dispensation already available in CSS, the Section Officers in other Secretariat Offices, which have always had an established parity with CSS/CSSS, shall be extended the scale of Rs.8000-13500 in Group B corresponding to the revised pay band PB 2 of Rs.8700-34800 along with grade pay of Rs.4800 on completion of four years service in the lower grade. This will ensure full parity between all Secretariat Offices. It is clarified that the pay band PB 2 of Rs.8700- 34800 along with grade pay of Rs.4800 is being recommended for the post of Section Officer in these services solely to maintain the existing relativities which were disturbed when the scale was extended only to the Section Officers in CSS. The grade carrying grade pay of Rs.4800 in pay band PB-2 is, otherwise, not to be treated as a regular grade and should not be extended to any other category of employees. These recommendations shall apply mutatis- mutandis to post of Private Secretary/equivalent in these services as well. The Structure of posts in Secretariat Offices would now be as under:-

Post Pre revised pay scale Corresponding revised pay band and grade pay LDC Rs. 3050-4590 PB-1 of Rs. 4860-20200 along with grade pay of Rs. 1900 UDC Rs. 4000-6000 PB-1 of Rs. 4860-20200 along with grade pay of Rs. 2400 Assistant Rs. 6500-10500 PB-2 of Rs. 8700-34800 along with grade pay of Rs. 4200 Section Rs. 7500-12000 PB-2 of Rs. 8700-34800 along Officer Rs. 8000-13500* with grade pay of Rs. 4800.

(on completion of four PB-2 of Rs. 8700-34800 along years) with grade pay of Rs. 5400* (on completion of four years) Under Rs. 10000-15200 PB-3 of Rs. 15600-39100 along Secretary with grade pay of Rs. 6100 Deputy Rs. 12000-16500 PB-3 of Rs. 15600-39100 along Secretary with grade pay of Rs. 6600 Director Rs. 14300-18300 PB-3 of Rs. 15600-39100 along with grade pay of Rs. 7600 2025.12.18 PRATIK VYAS 14:22:52+05'30' * This scale shall be available only in such of those organizations/services which have had a historical parity with CSS/CSSS. Services like AFHQSS/AFHQSSS/RBSS and Ministerial/Secretarial posts in Ministries/Departments organizations like MEA, Ministry of Parliamentary Affairs, CVC, UPSC, etc. would therefore be covered."

"Recommendations for non - Secretariat Organizations 3.1.14 In accordance with the principle established in the earlier paragraphs, parity between Field and Secretariat Offices is recommended. This will involve merger of few grades. In the Stenographers cadre, the posts of Stenographers Grade II and Grade I in the existing scales of Rs.4500-7000/Rs, 5000-8000 and Rs.5500- 9000 will, therefore, stand merged and be placed in the higher pay scale of Rs.6500-10500. In the case of ministerial post in

non- Secretariat Offices, the posts of Head Clerks, Assistants, [7] Office Superintendent and Administrative Officers Grade III in the respective pay scales of Rs.5000-8000, Rs.5500-9000 and Rs.6500-10500 will stand merged. The existing and revised structure in Field Organization will, therefore, be as follows:-

Designation	Present Pay Scale	Recommended Pay Scale	Corresponding Pay Band and Grade Pay
LDC	3050-4590	3050-4590	PB-1 GP-1900
UDC	4000-6000	4000-6000	PB-1 GP-2400
Head Clerk/Assistants/Steno Grade II/equivalent	4500-7000/5000-8000		
Office Superintendent/Steno Grade I/equivalent	5500-9000	6500-10500	PB-2 GP-4200
Superintendent/ Asst. Admn. Officer/ Private Secretary	6500-10500		
Administrative Officer Grade II/Sr. Private Secretary/equ.	7500-12000	7500-12000	PB-2 GP-4800
		Entry grade for fresh recruits 8000-13500 (on completion of four years)	(5400 after 4 years)
Administrative Officer Grade I	10000-15200	10000-15200	PB-2 GP-6100

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7.50.17 The Commission has considered the issue of administrative staff in the field offices and secretariat separately in the Report. The general recommendations made there will apply equally in Department of Atomic Energy and Department of Space as well. Insofar as the S&T staff in these Departments is concerned, it is observed that they have already been given a special dispensation in form of a merit promotion scheme vis-à-vis S&T staff in other Ministries/Departments. Something more is, however, needed to attract the brightest technicians to this Department. This is

necessary because success or failure of any mission depends as much on the precision of every technician involved in the project as on the scientists who have conceptualized and operationalized the project. Consequently, the Commission recommends a special Atomic Energy Allowance and Space Technology Allowance for all technicians working in Department of Atomic Energy and Department of Space respectively. The allowance may be paid annually at the rate of result oriented approach with greater emphasis on end user satisfaction rather than on mere procedures has been addressed in the Report, the Commission has refrained from making comprehensive recommendations on the issue of organizational reforms. Recommendations given by expert bodies in the past like Expenditure Reforms Commission have been reiterated, wherever the Commission is of the view that the same are essential for better delivery and removing the flab from the Government. Some observations regarding corporatization of certain service ministries/departments have also been made."

10. Therefore, from mere perusal of Para 3.1.3 which dealt with the disparity between the Secretariat and field offices has canvassed a case for parity between similarly placed persons employed in field offices and the Secretariat; the field offices being at the cutting edge of administration and para 3.1.9 recommended that this scale shall be available to such or those organizations/services which have had a historical parity with CSS/CSSS which the applicants herein had till the 5th CPC.

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11. It is admitted by the respondents in the reply in para F that the Appointments for the post of Senior Assistants/PAs in ISRO and DOS are made under common recruited notification, the seniority lists for Assistants/PAs in ISRO and DOS are different but the recruitment norms/recruitment rules for two are similar and even the Assistants/Personal Assistants working in ISRO are posted in the Secretariat of DOS on working arrangement basis and similarly the Assistants/Personal Assistants working in DOS are also posted in ISRO.

Therefore, considering the aforesaid facts that historical parity existed between the pay scales of the Senior Assistants/PAs in ISRO and Assistants/Personal Assistants working in DOS and CSS/CSSS and also by considering the fact that based on the ground of historical pay parity and similarity in functions and roles, similar benefits which were granted in various sub-ordinate and field offices ought to have been considered for the applicants herein by the respondents.

In this regard, it is apt to mention that as per file noting dated 10.08.2010 of the Department of Expenditure (Received by the applicants through RTI) (Annexure A/32) it is evident that the Assistants/Personal Assistants working in the Field Offices of the Research & Analysis Wing (R&AW) were also granted Grade Pay of Rs. 4600 w.e.f. 01.01.2006 at par with CSS/CSSS. Further, based on the historical parity, similar employees serving in field offices of Aviation Research Centre, Special Frontier Force were granted grade pay of Rs. 4600 at par with the Assistants & Personal Assistants serving in IB & RAW with the approval of the Department of Expenditure.

12. Therefore, the submission of learned counsel for the applicants has force that the similarly placed organizations which are not the Headquarters or Secretariat in true sense were extended the benefit of Grade Pay of Rs. 4600/- as claimed by the applicants herein on the basis of historical pay parity and functional similarity. Hence, the 2025.12.18 PRATIK VYAS 14:22:52+05'30' applicants are also liable for the benefit of Grade Pay of Rs. 4600 at par with their counterparts working in DOS/CSS/CSSS.

13. Additionally, at this stage, it is profitable to refer the judgment passed by the Hon ble Apex Court in case of Union of India & Ors. Vs. D.G.O.F. Employees Association and Anr. (Civil Appeal No. 1663/2016) decided on 09.11.2023 wherein while dismissing the said appeal and upheld the decision of the High Court of Delhi in W.P. (C) No. 4606/2013 dated 14.10.2014 granting the benefit to the respondents therein in terms of paragraph 3.1.9 of the recommendation contained in the 6th Central Pay Commission (6th CPC) had observed as under:-

"12. However, the learned senior counsel for the appellant in order to buttress his contention that para 3.1.14 of the recommendations would apply has sought to rely on the decision of this Court in Union of India and Others vs. Manoj Kumar and Others Civil Appeal Nos.913-914 of 2021 disposed of on 31.08.2021 wherein this court while examining the very same provision as contained in paras 3.1.9 and 3.1.14 had arrived at the conclusion that the benefit of equal pay in the said case cannot be extended and had held that the Pay Commission, which is a specialised body set up with the objective of resolving anomalies had made its recommendation, which would not call for interference. The decision would indicate that this Court though had referred to the very paragraph as contained in the Sixth CPC recommendations, what had however arisen for consideration therein was with regard to disparity between Secretariat and Field Officers. What was noted in that case was the claim made by Private Secretaries Grade II employed in Eastern Central Railways (Field Office/Zonal Railways) for parity in pay with their counterparts working in the Central Secretariat Stenographers Service/Railway Boards Secretariat Stenographers Service/Central Administrative Tribunal. In that view, this Court was of the view that though there is an observation that the recommendations shall apply mutatis mutandis to Private Secretaries and posts equivalent thereto in the service under para 3.1.9; the subsequent para 3.1.14 has specifically dealt with the aspect of parity between the Field and 2025.12.18 PRATIK VYAS 14:22:52+05'30' Secretariat Offices which was really the subject matter of the claim therein. The said observation, though emphasised by the learned senior counsel for the appellant would indicate that it is not a consideration akin to the consideration herein. As seen from the highlighted portion of the reproduced paragraphs from the impugned order passed by the High Court hereinabove, it would disclose that in the instant facts the reliance placed by the High Court in para 3.1.9 is based on the fact that there was similarity inasmuch as the pay scale as sought for implementation is the one which was provided to the employees of the headquarters as they were similarly placed as the employees of the headquarters in CSS/CSSS.

13. Further, what was also taken into consideration by the High Court is the historical similarity in pay scales which existed prior to the recommendations in the Sixth CPC. Such historical similarity which had existed was taken note and, in that light, the pay scale which was applicable was taken into consideration and had accordingly arrived at the conclusion that the employees in the headquarters of the Ordnance Factories being similarly placed cannot be discriminated. Therefore, such consideration in the instant case would fall within the parameters as permitted by this Court. Also, in the present circumstance, the High Court has adverted to the fact situation and has thereby rectified the pay anomaly. In fact, the question of parity with regard to the pay scale to the Assistants in the lower formations in the Indian Navy with that of the Assistants in CSS was held as discriminatory and violative of Article 14 of the Constitution by this Court in the case of All India Naval Clerks Association and Others vs. Union of India and Others in Civil Appeal arising out of Special Leave Petition (Civil) No.29204 of 2019 dated 27.07.2022.

14. As noted by the High Court, it is evident that parity of pay scales vis-à-vis LDCs, UDCs, Assistants/PAs and Stenographers, was maintained even prior to 01.01.1986 under the Third Central Pay Commission recommendations (for the period of 01.01.1973 to 31.03.1985). This parity was continued in the Fourth Central Pay Commission recommendations (with effect from 01.01.1986 to 31.12.1995) and the Fifth Central Pay Commission recommendations (for the period 01.01.1996 to

14.09.2006). The post of Assistants, PAs and Stenographers is governed by Director General Ordnance Factories Headquarters Civil Service Rules, 1977.

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15. Be that as it may, in the present facts the perusal of the judgment passed by the High Court impugned herein would indicate that the High Court having kept in view the legal, as well as the factual aspects, has not proceeded in a manner so as to equate two sets of employees in different organizations. But, keeping in view the recommendation of the Pay Commission and the applicability of the pay scales recommended to similarly placed employees employed in the headquarters and on noticing discrimination despite historical similarity has merely rectified the error, which does not call for interference.

16. In view of the above, the appeal being devoid of merit, stands dismissed with no order as to costs."

13.2 Similarly, the order passed by the Principal Bench of this Tribunal in O.A. No. 2206/2013 dated 05.12.2014 whereby it was held that the applicants therein is to be treated at par with the Assistant of CSS in order to maintain historical parity that existed between Accountant and Assistant.

13.3 In another case, wherein the Principal Bench of this Tribunal in O.A. NO. 1165/2010 vide order dated 09.04.2010 while disposing of the said OA, directed the respondents that in the background of

the historical parity of the Central Administrative Tribunal staff with their counterparts in CSS/CSSS, the case of the applicants may be decided by passing a reasoned and speaking order within a period of two months from the date of receipt of a copy of this order. In compliance of the aforementioned direction of the CAT, Principal Bench, DoPT vide order dated 06.07.2010 in consultation with the Ministry of Finance the Assistants/Stenographers Gr. C/Court Masters of the CAT were granted the benefit of Grade Pay of Rs. 4600/-.

14. From perusal of the above dicta, it can be seen that based on the historical parity till the 4th CPC, 5th CPC and the recommendation of the 6th CPC the employees including the applicants herein were granted the benefit of pay parity. However, in the month of September 2025.12.18 PRATIK VYAS 14:22:52+05'30' 2006 i.e. on 15.09.2006, the decision of the DoPT in consultation with the DoE to up-grade the pay of Assistants/Personal Assistants in CSS/CSSS from Rs. 5500-9000 to Rs. 6500-10,500/- w.e.f. 01.01.2006 and consequently assigning the grade pay of Rs. 4600/- to the Assistants/Personal Assistants who were in the pay scale of Rs. 6500-10,500/- as on 01.01.2006, the historical pay parity between the Senior Assistants/Personal Assistants in ISRO and Assistants/Personal Assistants in DOS and CSS/CSSS was disturbed. Therefore, in our considered view there is merit in the OA to allow the pay parity between the Senior Assistants/Personal Assistants working in ISRO, its Field Offices and Assistants/Personal Assistants working in CSS/CSSS/DOS.

15. Moreover, it is a settled principle in the general administrative practice that pay parity is seen from the perspective of historical pay parity of the similarly classified posts and the similarity in terms of roles and responsibilities. It is also evident from the recommendation of the various CPCs especially the 6th CPC and 7th CPC and the dictum laid down by the Hon ble Supreme Court and Hon ble High Courts in various cases while decided the pay parity between different posts, it is to be observed that whether the similarly situated posts have the historical pay parity during the 3rd CPC, 4th CPC, 5th CPC and 6th CPC in addition to their functionality, roles, responsibilities are similar.

In the present case, it is evident from the reply filed by the respondents and averments made by the applicants in the OA that there was absolute pay parity between the Senior Assistants/Personal Assistants working in ISRO and Assistants/Personal Assistants working in the DOS and CSS/CSSS during the 3rd CPC, 4th CPC, 5th CPC and till the 6th CPC. However, it was disturbed only when the Department of Personnel and Training in consultation with Ministry of Finance had up-graded the scale of Assistants in CSS/CSSS from Rs. 5500-9000 to Rs. 6500-10,500/- vide their 2025.12.18 PRATIK VYAS 14:22:52+05'30' order dated 15.09.2006 w.e.f. 01.01.2006. Consequently, the DoE vide order dated 16.11.2009 granted higher Grade Pay of Rs. 4600/- to the Assistants/Personal Assistants working in CSS/CSSS in the pay scale of Rs. 6500-10,500/- retrospectively w.e.f. 01.01.2006. Thereafter, the respondent no.2 i.e. DOS vide OM dated 01.02.2012 in terms of the Department of Expenditure OM dated 16.11.2009, extended the benefit of Grade Pay of Rs.4600/- in PB-2 w.e.f. 1.1.2006 to the Assistants and Personal Assistants in DOS Secretariat and the said benefits were not extended to the Senior Assistants/Personal Assistants working in ISRO. It is also important to take note of the recommendation of the 6th CPC more particularly para 3.1.3 Chapter 3 wherein it was recommended that the field offices are at the cutting edge of administration and may,

in most cases, determine whether a particular policy turns out to be a success or a failure in terms of actual benefit to the consumer. Accordingly, the time has come to grant parity between similarly placed personnel employed in field offices and in the Secretariat. This parity will need to be absolute till the grade of Assistant. Further, in our considered view, it is also relevant to mention that the role and responsibilities of the Senior Assistants/Personal Assistants working in the ISRO has recently become more important and their contribution to the development of the national economic space development cannot be ignored/ overlooked. The development of Space technology can be solely attributed to the ISRO in this country. Therefore, it would not be appropriate, if the personnels working in the ISRO are not treated at par with the personnels working in the DOS/CSS/CSSS.

16. Although, it is a settled principle that the Tribunals and Courts are not the specialized body to determine the pay scale of any individual cadre/post as it is the responsibility of the expert body of the Central Pay Commissions to examine the issue and give their recommendation. However, the Tribunals and Courts have the jurisdiction to intervene in the case of pay scale where there is 2025.12.18 PRATIK VYAS 14:22:52+05'30' discrimination in assignment of the pay scale to different posts/cadre. In the present case also, although there was explicit recommendations as mentioned hereinabove apropos in different para of the 6th CPC Report to maintain the pay parity between the Field Offices and Secretariat up to the level of Assistant, however, it is not observed at least in the case of the Senior Assistants/Personal Assistants of ISRO. Therefore, in our considered view, there is an element of discrimination in non-assignment of Grade Pay of Rs. 4600/- in terms of recommendation of the 6th CPC to the Senior Assistants/Personal Assistants working the ISRO viz-a-viz Assistants/Personal Assistants working in DOS/CSS/CSSS w.e.f. 01.01.2006.

17. Thus, as per the mandate of Article 14 & 16 of the Constitution of India and in consonance of the recommendation of the 6th CPC especially in paras 3.1.1, 3.1.3, 3.1.9, 3.1.14 & 7.50.17 as well as the judgment and order referred herein above on the ground of historical pay parity and similarity in functional responsibility, in our considered view, the OA deserves to be allowed. Accordingly, the impugned Order No. 50(2)/E.III(B)/2011 dated 06th June 2017 (Annexure A/1) is quashed and set aside and the respondents are directed to grant the benefit of Grade Pay of Rs. 4600/- w.e.f. 01.01.2006 to the applicants herein with all consequential benefits, at par with Assistants/Personal Assistants working in DOS/CSS/CSSS with all consequential benefits. The aforesaid exercise shall be completed within a period of four months from the date of receipt of certified copy of this order. No order as to costs.

(Dr. Hukum Singh Meena)
Member (A)

(Jayesh V Bhairavia)
Member (J)

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